
AAES-OS GOVERNANCE DOCUMENT

MULTI-PARTY MUTUAL NON- DISCLOSURE AGREEMENT

Between: *Jon Adams Halstead ("Founder")*

and the following Collaborating Developers (collectively, "Collaborators"):

[Daniel's Full Legal Name] ("Daniel"), Daniel A. Darc ("Darc"), James Morris, and Daniel Hatton

Effective Date: _____

RECITALS

WHEREAS, Jon Adams Halstead ("Founder") is the creator, owner, and principal architect of the AAES-OS (Adaptive Autonomous Executive System - Operating System), a proprietary constitutional AI governance architecture and software stack; and

WHEREAS, [Daniel's Full Legal Name] ("Daniel"), Daniel A. Darc ("Darc"), James Morris, and Daniel Hatton (collectively, the

"Collaborators") are each being engaged individually as developers and contributors in connection with the AAES-OS project, and all five parties desire to explore and engage in a collaborative development relationship; and

WHEREAS, in the course of that collaboration, the Founder and each of the Collaborators may disclose or receive certain confidential and proprietary information; and

NOW, THEREFORE, in consideration of the mutual promises herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows.

SECTION 1 — DEFINITION OF CONFIDENTIAL INFORMATION

1.1 "Confidential Information" means any and all non-public information disclosed by one party (the "Disclosing Party") to the other party (the "Receiving Party"), whether disclosed orally, in writing, electronically, or by any other means, that is either marked as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

1.2 Confidential Information includes, without limitation:

- Source code, object code, scripts, and software implementations;
- Architecture diagrams, system design documents, and technical specifications;
- Constitutional governance frameworks, AI model configurations, and policy structures;
- API structures, data schemas, and integration protocols;
- Business plans, strategies, roadmaps, and financial information;

- Contributor identities, internal communications, and organizational information;
- Any other information that is not generally known to the public and is reasonably understood to be confidential in context.

1.3 Exclusions. Confidential Information does not include information that:

- (a) is or becomes publicly available through no act or omission of the Receiving Party;
- (b) was independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or
- (c) is received from a third party who is under no obligation of confidentiality with respect to such information.

SECTION 2 — MUTUAL OBLIGATIONS OF CONFIDENTIALITY

- 2.1 Strict Confidence.** Each party, as a Receiving Party, agrees to hold the other party's Confidential Information in strict confidence and to protect it from unauthorized use, access, or disclosure.
- 2.2 Non-Disclosure.** Neither party shall disclose, publish, or transmit any Confidential Information to any third party without the prior written consent of the Disclosing Party.
- 2.3 Permitted Use Only.** Each party agrees to use Confidential Information solely for the purpose of carrying out the AAES-OS collaboration described in this Agreement, and for no other purpose whatsoever.
- 2.4 Need-to-Know Limitation.** Each party shall limit internal disclosure of Confidential Information to those of its personnel, agents, or advisors who have a legitimate need to know such information for the purposes of this Agreement, and who are bound by obligations of confidentiality no less protective than those set forth herein.

- 2.5 Standard of Care.** Each party shall protect the other's Confidential Information using at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care.

SECTION 3 — INTELLECTUAL PROPERTY PROTECTION

- 3.1 No Transfer of Ownership.** Nothing in this Agreement transfers, assigns, or grants to either party any ownership interest, license, or right in or to the other party's intellectual property, except as expressly stated herein.
- 3.2 Pre-Existing IP — Founder.** All intellectual property created by Jon Adams Halstead prior to or independently of this collaboration — including but not limited to the AAES-OS architecture, governance frameworks, and related works — remains the sole and exclusive property of Jon Adams Halstead.
- 3.3 Pre-Existing IP — Each Collaborator.** All intellectual property created by any individual Collaborator ([Daniel's Full Legal Name], Daniel A. Darc, James Morris, or Daniel Hatton) prior to or independently of this collaboration remains the sole and exclusive property of that respective Collaborator. No Collaborator's pre-existing IP is transferred, shared, or assigned to any other Collaborator or to the Founder by virtue of this Agreement.
- 3.4 Collaboration Contributions.** Any intellectual property contributions made by any Collaborator to the AAES-OS project during the course of this collaboration shall be governed exclusively by a separate, mutually executed Contributor Agreement between the Founder and that individual Collaborator. Such Contributor Agreement shall take precedence over this Agreement with respect to those contributions.

3.5 No Cross-Collaborator Sharing. No Collaborator shall disclose, share, or transmit the Confidential Information of the Founder or of any other Collaborator to any of the other Collaborators without the express prior written consent of Jon Adams Halstead. Each Collaborator’s obligations under this Agreement are individual, separate, and independent of those of the other Collaborators.

3.6 Prohibited Conduct. No party shall reverse-engineer, replicate, reproduce, adapt, commercially exploit, or otherwise use another party’s Confidential Information for any purpose outside the scope of this Agreement.

SECTION 4 — GOVERNANCE ALIGNMENT CLAUSE

AAES-OS Constitutional Principles

This section reflects the foundational governance philosophy of the AAES-OS project and is an integral, enforceable part of this Agreement.

4.1 Acknowledgment of Principles. All parties acknowledge that AAES-OS is built upon constitutional governance principles, including: *fairness, transparency, non-exploitation, distributed accountability, and ethical operation*. All parties affirm that these principles reflect their shared values and intent in entering this collaboration.

4.2 Conduct Consistent with Principles. All parties agree to conduct their collaboration in a manner consistent with the foregoing principles. No party shall use Confidential Information, access, or any relationship arising from this Agreement to:

- (a) undermine, circumvent, or exploit the other party's rights, intellectual property, or governance architecture;
- (b) engage in conduct that is deceptive, extractive, or contrary to the principle of mutual good faith; or
- (c) take any action that conflicts with the transparent and ethical operating standards upon which AAES-OS is premised.

4.3 Good Faith Obligation. All parties affirm their commitment to operate with transparency and good faith throughout the duration of this Agreement, and to promptly notify the Founder of any circumstance that may create a conflict with these principles.

SECTION 5 — TERM

- 5.1 Duration.** This Agreement shall remain in full force and effect for a period of **three (3) years** from the Effective Date, unless earlier terminated by mutual written agreement of all parties.
- 5.2 Early Expiration.** Notwithstanding Section 5.1, this Agreement shall expire earlier with respect to any specific item of Confidential Information if and when that information enters the public domain through no act or omission of either party.
- 5.3 Survival.** The obligations set forth in Sections 1 through 5 shall survive any termination or expiration of the collaboration between the parties and shall continue in full force for the remainder of the term specified in Section 5.1.

SECTION 6 — PERMITTED DISCLOSURES

6.1 Legal Compulsion. A Receiving Party may disclose Confidential Information to the extent required by applicable law, valid court order, or directive of a regulatory authority with jurisdiction, provided that:

(a) the Receiving Party provides the Disclosing Party with prompt written notice of such requirement as soon as practicable and prior to any disclosure, to the extent permitted by law; and

(b) the Receiving Party reasonably cooperates with the Disclosing Party's efforts to seek a protective order, confidential treatment, or other appropriate relief to limit or prevent such disclosure.

6.2 Minimum Disclosure. In all cases of legally compelled disclosure, the Receiving Party shall disclose only that portion of the Confidential Information that is strictly required and shall use reasonable efforts to ensure that any disclosed information is treated confidentially by the recipient authority.

SECTION 7 — NO LICENSE OR PARTNERSHIP

7.1 No Relationship Created. This Agreement does not create, and shall not be construed to create, any joint venture, partnership, employment relationship, agency relationship, or any other legal entity or association between the parties.

7.2 No License. This Agreement does not grant either party any license, right, or permission to use the other party's intellectual property, trademarks, trade names, or Confidential Information beyond what is expressly and narrowly permitted herein for the purpose of the AAES-OS collaboration.

7.3 No Obligation to Proceed. Nothing in this Agreement obligates either party to enter into any further agreement, transaction, or business relationship with the other party.

SECTION 8 — REMEDIES

- 8.1 Irreparable Harm.** Each party acknowledges and agrees that any breach or threatened breach of this Agreement may cause irreparable harm and injury to the Disclosing Party, for which monetary damages alone would be an inadequate remedy.
- 8.2 Equitable Relief.** Accordingly, each party shall be entitled to seek equitable relief, including temporary and permanent injunctive relief, specific performance, and other equitable remedies, without the requirement to post bond or prove actual damages, in addition to all other remedies available at law or in equity.
- 8.3 Cumulative Remedies.** The rights and remedies set forth in this Agreement are cumulative and not exclusive of any other rights or remedies that may be available to either party at law or in equity.

SECTION 9 — GOVERNING LAW

- 9.1 Applicable Law.** This Agreement shall be governed by and construed in accordance with the laws of the **State of Michigan, United States of America**, without regard to its conflict of law provisions.
- 9.2 Venue.** Any dispute arising out of or relating to this Agreement that cannot be resolved by good-faith negotiation between the parties shall be submitted to the exclusive jurisdiction of the state and federal courts located in the State of Michigan, and both parties hereby consent to personal jurisdiction and venue in such courts.

SECTION 10 — ENTIRE AGREEMENT & AMENDMENTS

- 10.1 Entire Agreement.** This Agreement constitutes the entire agreement between the parties with respect to the subject matter of confidentiality and non-disclosure, and supersedes all prior and contemporaneous negotiations, representations, warranties, and understandings of the parties with respect thereto.
- 10.2 Amendments.** This Agreement may not be modified, amended, or supplemented except by a written instrument signed by all parties. No oral modification or waiver shall be effective.
- 10.3 Severability.** If any provision of this Agreement is found to be unenforceable or invalid under applicable law, such provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions of this Agreement shall continue in full force and effect.
- 10.4 Waiver.** The failure of either party to enforce any provision of this Agreement shall not constitute a waiver of that party's right to enforce such provision in the future.
- 10.5 Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding.

SIGNATURES

IN WITNESS WHEREOF, all parties have executed this Multi-Party Mutual Non-Disclosure Agreement as of the Effective Date written above.

Founder Jon Adams Halstead Signature: Authorized Signature Printed Name: Printed Full Legal Name Title: Founder, AAES-OS Date: Date of Execution	Collaborator 1 [Daniel's Full Legal Name] ("Daniel") Signature: Authorized Signature Printed Name: Printed Full Legal Name Title: Collaborating Developer Date: Date of Execution	Collaborator 2 Daniel A. Darc ("Darc") Signature: Authorized Signature Printed Name: Printed Full Legal Name Title: Collaborating Developer Date: Date of Execution	Collaborator 3 James Morris Signature: Authorized Signature Printed Name: Printed Full Legal Name Title: Collaborating Developer Date: Date of Execution	Collaborator 4 Daniel Hatton Signature: Authorized Signature Printed Name: Printed Full Legal Name Title: Collaborating Developer Date: Date of Execution
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CONFIDENTIAL — AAES-OS Governance Document | Multi-Party Mutual NDA | © Jon Adams Halstead

This document is subject to the confidentiality obligations described herein. Unauthorized disclosure is strictly prohibited.